

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUWT065140: ERLINDA HATCH vs DIGNITY HEALTH, DBA ST. JOHNS
MEDICAL CENTER, A CALIFORNIA NON-PROFIT, PUBLIC BENEFIT
CORPORATION**

**08/25/2026 in Department 21
Demurrer**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Defendant Dignity Health dba St. John’s Regional Medical Center’s Demurrer to Plaintiff’s Complaint
- (2) Defendant Dignity Health dba St. John’s Regional Medical Center’s Motion to Strike

Tentative Ruling:

Defendant’s demurrer to the 2nd, 4th, and 5th causes of action is SUSTAINED with leave to amend. Defendant’s demurrer to the 3rd cause of action is OVERRULED.

Defendant’s Motion to strike is GRANTED as to the 1st and 3rd causes of action, with leave to amend. The Motion to Strike is MOOT in terms of the 2nd, 4th and 5th causes of action.

Plaintiff shall be granted 30 days’ leave to amend. Counsel for Defendant to give notice within two (2) court days.

Discussion:

2nd COA for Retaliation for Engaging in Protected Activity (Govt Code §12940)

Defendant demurrers on the grounds that the second cause of action fails to state facts sufficient to constitute a cause of action as Plaintiff fails to allege facts establishing that she engaged in activity protected by FEHA.

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This cause of action incorporates by reference the first twenty-eight paragraphs in the Complaint, but is ostensibly focused on the theory that plaintiff experienced retaliation in the workplace after “seeking to exercise rights guaranteed under FEHA and/or opposing defendants’ failure to provide such rights, including the right to be free of discrimination, harassment, or retaliation.” (Complaint Para 31.) Although the operative pleading specifically cites to Govt. Code §12940(h), plaintiff’s opposition makes clear that she was trying to plead retaliation per §12940(m)(2). This Court will proceed as if plaintiff’s Complaint contains a scrivener’s error.

FEHA prohibits an employer from discharging any person from employment -- or otherwise discriminating against the person in terms, conditions, or privileges of employment -- because of the person's need for an accommodation. To establish an employer's liability, a plaintiff must show her need for an accommodation disability was a substantial motivating factor in the challenged employment decision. Retaliation under FEHA requires a causal link between the adverse employment action and what the employee was actually doing to trigger the adverse action. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 231-232; *Husband v. Target* (2026) 120 Cal.App.5th 762, 774-775.) For example, going on record and opposing/challenging practices in the workplace that are forbidden by FEHA may provide a factual basis for the claim. (See Govt. Code §12940(h).) The key is defining the activity at issue to determine if it falls within the protections of FEHA. However, simply “notifying one's employer of one's medical status, even if such medical status constitutes a disability under FEHA, does not fall within the protected activity identified in” FEHA. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 247.)

In 2015, the Legislature amended Govt. Code §12940 by adding a new retaliation theory, to wit: subdivision (m)(2). Pursuant thereto, it became unlawful for an employer to retaliate or otherwise discriminate against a person for requesting accommodation (regardless of whether the request was granted.) Requesting an accommodation is the protected activity, but the nexus must exist between the adverse employment action and that request. In the operative pleading, plaintiff avers in pertinent part that “following the incident involving her husband’s care, Plaintiff experienced significant stress and emotional distress related to her own health condition. Plaintiff took CFRA-protected leave for her own serious health condition, which was supported by a physician’s certification. Plaintiff requested and took medical leave as a reasonable accommodation for her condition, of which Defendant was aware.” (See Complaint Para 14.)

Plaintiff does not allege that she experienced any retaliation or discrimination as a result of her *request* for accommodation. In fact, the operative pleading permits only one inference: that her request for accommodation was granted without resistance. Plaintiff alleges that defendant (1) initiated a performance investigation against her and (2) placed her on administrative leave less than two days *after* returning to work, but that shows only that the employer delayed adverse action until the accommodation was satisfied.

Defendant is correct in that Plaintiff has not adequately stated a cause of action for retaliation under §12940(h) or (m)(2), and as such the demurrer to this cause of action is SUSTAINED with leave to amend.

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3rd COA for Retaliation for Taking CFRA Leave (Govt Code §12945.2)

Defendant demurs on the grounds the third cause of action fails to state facts sufficient to constitute a cause of action against Defendant to the extent it alleges interference with, denial of, or failure to provide CFRA leave because Plaintiff alleges she requested and received her CFRA protected leave.

This cause of action is focused on the theory that plaintiff experienced retaliation in the workplace after “taking protected CFRA leave.” (Complaint Para 38.) Although the operative pleading specifically cites to Govt. Code §§ 12940(t) and 12945.2(l), plaintiff’s opposition papers make plain that she was intending to plead retaliation under §12945.2(k) and (q).

This Court will proceed as if plaintiff’s Complaint contains another scrivener’s error.

The Moore-Brown-Roberti Family Rights Act (also known as the California Family Rights Act, or “CFRA”) is intended to give employees an opportunity to take leave from work for certain personal or family medical reasons without jeopardizing job security. The CFRA makes it unlawful for a large employer to refuse to grant a request by an employee for family care and medical leave, to interfere with, restrain, or deny the exercise of, or the attempt to exercise, any right provided by the CFRA, or to retaliate against any individual because of his or her exercise of the right to family care or medical leave. Although the CFRA does not actually prohibit retaliation *per se*, the implementing regulations incorporate retaliation into the interference concept under §12945.2(q). (See 2 CCR §11094(b).) In order to prove a cause of action for retaliation in violation of CFRA, the plaintiff must prove that she was (1) eligible to take CFRA leave; (2) that she exercised her right to take leave for a qualifying CFRA purpose; and (3) she suffered an adverse employment action, such as termination, fine, or suspension, because of the exercise of her right to CFRA leave. (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444,453-454; *Bareno v. San Diego Community College Dist.* (2017) 7 Cal.App.5th 546, 560; *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 600-601.) As set forth in the application regulations, “employers cannot use the taking of CFRA leave as a negative factor in employment actions, such as hiring, promotions or disciplinary actions.” (2 CCR §11094(b).)

Plaintiff has not alleged any facts to permit an inference, let alone a finding, that defendant interfered with her rights under CFRA. The allegations in the pleading permit a finding that plaintiff made her leave request, received permission to be out for almost eight weeks, and was not required to respond to any investigation or inquiry until after she returned. The regulations define interference as refusing to authorize CFRA leave, discouraging an employee from using such leave, changing the essential functions of the job in order to preclude the taking of leave, reducing an employee's hours available to work in order to avoid employee eligibility, and terminating an employee when it anticipates an otherwise eligible employee will be asking for a CFRA-qualifying leave in the future. (2 CCR §11094(a)-(b).) Plaintiff has not alleged any of the factors, or a factor which could be reasonably implied therein.

However, Plaintiff’s third cause of action is also based on Govt. Code §12945.2(k) which provides that it is unlawful for an employer to discharge or discriminate against an individual

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based on the individual's exercise of the right to family care and medical leave. (Govt. Code §12945.2(k).) Here, Plaintiff's complaint alleges Defendant was aware of her medical leave and she returned from leave on or about December 9, 2024. (Complaint Para 14(b).) One day after returning from leave Defendant initiated an investigation and placed her on administrative leave despite telling Plaintiff the investigation and underlying complaint did not concern her as she did not engage in any misconduct. (Complaint Para 15.) Nevertheless, Plaintiff was terminated on January 6, 2025 without identifying any policy violation or misconduct or any non-retaliatory reason for her termination. (Complaint Para 16.) Defendant retaliated against Plaintiff for exercising her rights on the basis of *taking* protected CFRA leave. (Complaint Para 38.) These allegations, when read as a whole and accepted as true for purposes of the demurrer, are sufficiently plead to withstand a demurrer to this cause of action based on Govt. Code §12945.2(k).

Since a demurrer cannot be sustained to only a portion of a cause of action, the demurrer to the third cause of action must fail. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.)

The demurrer to the third cause of action is **OVERRULED**.

4th COA for Retaliation for Failure to Prevent Discrimination, Harassment, or Retaliation (Govt Code §12940(k))

Defendant demurs on the grounds the fourth cause of action fails to state facts sufficient to constitute a cause of action against Defendant to the extent Plaintiff fails to adequately allege any underlying actionable discrimination, harassment, or retaliation in violation of FEHA.

The failure to take all reasonable steps to prevent discrimination, harassment, and retaliation is a separate unlawful employment practice under Govt Code §12940(k). However, it requires a viable underlying FEHA violation. (*State Dept. of Health Services v. Superior Court* (2003) 31 Cal.4th 1026, 1040; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289.) Since the cause of action alleging a FEHA violation is not well-pled, this cause of action fails *ab initio*.

The demurrer to the fourth cause of action is **SUSTAINED** with leave to amend.

5th COA for Wrongful Termination in Violation of Public Policy

Defendant demurs on the grounds the fifth cause of action is uncertain, ambiguous, and unintelligible as it fails to identify with specificity the fundamental public policies allegedly violated and improperly conflates "protected status" with "protected activity".

While an at-will employee may ordinarily be terminated for no reason at all, or even for one that is considered to be arbitrary or irrational, an employer is not permitted to terminate an employee for a reason which contravenes a well-established fundamental public policy. (*Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167, 172.) This is commonly referred to as a *Tameny* claim. To establish a *Tameny* claim, plaintiff must plead facts to ultimately show by a preponderance of the evidence each of the following essential elements: (1) the existence of an employer-employee

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relationship; (2) some adverse employment action taken against the employee; (3) adverse action that is substantially motivated by purpose violative of public policy; and (4) actual damages proximately caused by the adverse action. The public policy must be delineated in either constitutional or statutory provisions, public in the sense that it inures to the benefit of the public rather than serving merely the interests of the individual, well established at the time of the discharge, and substantial and fundamental. (See *Williams v. Sacramento River Cats Baseball Club, LLC* (2019) 40 Cal.App.5th 280, 287-288; *Touchstone Television Productions v. Superior Court* (2012) 208 Cal.App.4th 676, 678-681; *Haney v. Aramark Uniform Services, Inc.* (2004) 121 Cal.App.4th 623, 641-642; *Sistare-Meyer v. Young Men's Christian Ass'n of Metropolitan Los Angeles* (1997) 58 Cal.App.4th 10, 18.)

In support of this claim, plaintiff alleges that “defendant terminated plaintiff’s employment in violation of various fundamental public policies underlying both state and federal laws. Specifically, plaintiff’s employment was terminated in part because of her protected status (i.e., protected activity). These actions were in violation of, but not limited to, the FEHA, the California Constitution, Government Code section 12900, et seq., and California Labor Code section 1102.5.” (See Complaint Para 53.) Defendant concedes that Labor Code §1102.5 can serve as the predicate for a *Tameny* claim (Reply 7:10-12), but claims that the pleading is “uncertain” due to the fact that plaintiff has included a laundry list of public policies at issue, rather than focusing her lawsuit on one or two. There is no requirement that plaintiff do so, and a cause of action is not “uncertain” for purposes of CCP §430.10(f) merely by including alternative bases for a claim. However, a *Tameny* claim based on the public policy underlying retaliation statutes is subject to the statutory limitations therein, which means the *Tameny* claim must show that the public policy under FEHA and CFRA has indeed been violated if plaintiff is intending to rely on these. (See *Silo v. CHW Medical Foundation* (2002) 27 Cal.4th 1097, 1108–1109; *Davis v. Farmers Ins. Exchange* (2016) 245 Cal.App.4th 1302, 1322-1323; *Mendoza v. Western Medical Center Santa Ana* (2014) 222 Cal.App.4th 1334, 1341.)

Although a demurrer does not lie to only part of a cause of action (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683), given the number of mis-cited statutes within the original Complaint, and the need to amend several portions of the Complaint, this Court elects to SUSTAIN the demurrer with leave to amend so as to ensure that discovery remains focused on relevant issues.

Motion to Strike

Pursuant to CCP §§ 435 and 436, a party may move for an order striking from a pleading “any irrelevant, false or improper matter” or “any part of any pleading not drawn in conformity” with laws, rules or orders. Contrary to popular folklore, there is no true heightened pleading requirement for a punitive damage prayer based on malice or oppression (there is for fraud). However, conclusions of law without factual support are insufficient to withstand pleading attack. (See *Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 650; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1039.) As would be the case here, as against any corporation, plaintiff would need to plead facts showing that an officer, director or managing agent personally participated in the alleged wrongdoing, authorized the alleged wrongdoing, or ratified the alleged wrongdoing. (See Civil Code §3294(b); *Weeks v. Baker & McKenzie* (1998)

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63 Cal.App.4th 1128, 1148-1149; in accord, *StreetScenes v. ITC Entertainment Group, Inc.* (2002) 103 Cal.App.4th 233, 242.)

The only causes of action surviving the demurrer is the 1st cause of action for whistleblower retaliation under Labor Code §1102.5 and the 3rd cause of action for retaliation for taking CFRA leave under Govt Code §12945.2. Under Labor §1102.5, an employer shall not retaliate against an employee who may disclose information to upper management or any government agency regarding a possible violation of law. This is commonly referred to as a “whistleblower” claim. To establish this claim, plaintiff must show by a preponderance of the evidence the following essential elements: (1) the existence of an employer-employee relationship; (2) that plaintiff had reasonable cause to believe that the employer was engaged in illegal activity; (3) the employer had reason to believe that plaintiff had, or soon will, report that activity to a person/agency with investigative and curative authority; (4) defendant’s concern about plaintiff’s reporting was a *contributing* factor for the adverse (aka retaliatory) action taken against plaintiff; and (5) the adverse action was a *substantial* factor in causing plaintiff’s harm. (See *Brown v. City of Inglewood* (2023) 92 Cal.App.5th 1256, 1265; *Nejadian v. County of Los Angeles* (2019) 40 Cal.App.5th 703, 718-720.) If those elements are met, the defense is then burdened with the obligation to show by clear and convincing evidence that the adverse employment action would have occurred for legitimate, independent reasons even if the employee had not engaged in the protected whistleblowing activity. (See Labor Code §1102.6; *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 715-716; *Vatalaro v. County of Sacramento* (2022) 79 Cal.App.5th 367, 378-379.)

Plaintiff alleges that she “raised complaints of actual and/or potential illegality, including but not limited to complaints about violations of the FEHA, California Constitution, and Government Code Section 12900 et seq. while she worked for defendants, and defendants retaliated against her by taking adverse employment actions, including employment termination, against her.” (See Complaint Para 24.) Although defendant elected not to demurrer to this cause of action, the operative pleading fails to demonstrate any retaliation based on her raising complaints about violations of FEHA, the Labor Code, or the Government Code. To the extent plaintiff is basing her 1st cause of action on the poor medical care provided to her husband, or that her termination is based on reporting a nurse, she has not alleged any specific facts connecting these complaints to her ultimate termination. In addition, the averment supporting the subject prayer is insufficient. Plaintiff alleges that “defendants’ misconduct was committed intentionally, in a malicious, fraudulent, despicable, and/or oppressive manner, and this entitles plaintiff to punitive damages against defendants.” (See Complaint Para 27.) Plaintiff does not state which “misconduct” she is referring to, who in upper management participated in the decision, or how a decision to terminate plaintiff following an investigation was “despicable” – which is defined as conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime.” (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 716.)

As to the 3rd cause of action (Complaint Para 43), the same analysis applies.

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Defendant's motion to strike is moot in terms of the 2nd, 4th and 5th causes of action, but as to the 1st and 3rd causes of action the motion is GRANTED. Plaintiff shall be granted 30 days' leave to amend.